

Robert Perez, et al. v. Jaax Concrete, Inc., et al., 25CV-0528

**Hearing: (1) Jaax Concrete, Inc.’s Motion to Compel Discovery Responses, and for Monetary Sanctions
(2) Jaax Concrete, Inc.’s Motion for Order Deeming Admitted Truth of Facts and for Monetary Sanctions**

Date: August 20, 2026

TENTATIVE RULING

Defendant Jaax Concrete, Inc. (Jaax) filed: (1) a motion to compel Defendant Holliday Rock Co., Inc. (Holliday Rock) to serve verified responses to Form Interrogatories, Special Interrogatories, and Request for Production of Documents, and for monetary sanctions; and (2) a motion to deem admitted matters specified in Request for Admission propounded to Holliday Rock, and for monetary sanctions.

No opposition is currently on file. However, the proof of service for the motion and supporting documents was filed concurrently with the motion and therefore could not have included the hearing date and time. (Cal. Rules of Court, rule 3.1110, subd. (b); Local Rule 7.05.1 [hearing information added by the Clerk’s Office at the time of filing].) Jaax failed to file proof that a notice containing the date and time of the hearing was served. Notice is therefore deficient.

The court shall continue the hearing on this matter to September 24, 2026. Jaax’s counsel shall serve notice of the continued hearing date.